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23VECV03417

Lingard v Sober Souls

FOR THE FSC

8/11/2026

COUNSEL,

PARTIES, AND WITNESSES ARE REQUIRED TO COMPLY WITH ALL LOCAL RULES BUT THE COURT REITERATES THESE SPECIFIC LOCAL RULES:

3.183

OBJECTIONS TO CLOSING ARGUMENT Any objection to a closing argument should be argued outside the jurors' hearing at the side bench. If the trial judge is uncertain about whether there has been a misstatement of the evidence in final argument, the jurors may be advised to consult their own memories and notes.

3.112

EFFECT OF ASKING ANOTHER QUESTION Counsel must not repeat the witness' answer to the prior question before asking another question. Counsel must wait until the witness has completed the answer before asking another question. If counsel asks a new question before the witness answers the pending question or an objection thereto is ruled upon, counsel will be deemed to have withdrawn the earlier question. This applies to voir dire.

3.158 USE

OF DEPOSITIONS, INTERROGATORIES AND REQUESTS FOR ADMISSION Before reading into evidence any portion of any deposition, interrogatory or request for admission, or showing any video deposition, counsel must obtain leave of court and must

then advise the court and opposing counsel which pages and lines of the deposition or the numbers of the interrogatories or requests for admission are to be read. Prior to such reading, opposing counsel must be given a reasonable opportunity to read the same and interpose any objections thereto. If counsel intends to read multiple interrogatories into evidence, that counsel should make extracts of the pertinent portions of questions and answers and furnish sufficient copies for adversaries and the court before reading. Those extracts should be prepared in a form so that the question answered immediately precedes the answer and the date or other description of the particular set of interrogatories appear on the extract. The same procedure will apply to requests for admissions and responses thereto.

3.120

POLICY AGAINST INDICATION AS TO TESTIMONY Persons in the courtroom, including the parties and counsel, must not indicate, by facial expression, shaking of the head, gesturing, shouts, or other conduct their disagreement with or approval of testimony or other evidence. Counsel must so instruct parties they represent, witnesses they call, and any persons accompanying them.

3.125

OFFERS TO STIPULATE TO BE OUT OF JURY'S HEARING Offers to stipulate must be made outside the hearing of jurors. While the court is in session, counsel wishing to stipulate must first obtain leave of court and then confer with other counsel outside the hearing of the jurors. Do not solicit a stipulation in front of the jury.

3.131

COUNSEL'S DEMONSTRATING OR DISPLAYING REPRESENTATIONS OF TESTIMONY TO THE JURY DURING PRESENTATION OF EVIDENCE Without the consent of the trial judge, counsel may not, during presentation of evidence, summarize, diagram, calculate, or outline testimony or evidence in a manner displayed to the jury. This includes, but is not limited to, using a chalkboard, paper on a bulletin board, overhead projection device, computer or other word processing device to be projected onto a screen, or any other technology.

3.47

MULTIPLE COUNSEL – MOTIONS In the absence of permission by the court, only one attorney for a party may present oral argument on a motion, application, or issue. Upon the request of a party, the court may, in its discretion, allow more than one attorney per party to argue. In making the request, counsel may

present the issue of providing an opportunity for a less experienced attorney.

3.96

ADDRESSING OTHERS During trial, counsel must not exhibit familiarity with witnesses, parties or other counsel, nor address them by use of first names (except [minor] children).

TENTATIVE

RULING ON MOTIONS IN LIMINE

All rulings

on motions in limine apply to all counsel, all parties, and all witnesses. Counsel are responsible for advising their clients and witnesses of the rulings. The court recently had a mistrial in which a witness violated a motion in limine and upon questioning, the witness had not been told of the ruling, resulting in sanctions on that counsel. Please be sure your clients and witnesses know the rulings and comply.

PLAINTIFFS'

MOTIONS IN LIMINE

MOTION IN

LIMINE NO. 1 TO EXCLUDE DEFENDANTS FROM DISCUSSING OR IMPLYING THAT DECEDENT DAKOTA LINGARD HAD A HISTORY OF SEIZURES: Grant. There shall be no mention that decedent had a history of seizures without first obtaining permission from the court and without laying a proper foundation. If there is such evidence, present it to the court at the FSC.

MOTION IN

LIMINE NO. 2 TO EXCLUDE DEFENDANTS FROM REFERENCING THAT ANY DOCUMENT SIGNED BY DECEDENT DAKOTA LINGARD WAS A COMPLETE DEFENSE TO PLAINTIFFS' CLAIMS:

Deny. Defendants have the right to present any defense on which it has evidence. It is up to the jury to decide whether it is a complete defense or not. Otherwise, it is improper to ask the court to make that decision as a matter of law.

MOTION IN

LIMINE NO. 3 TO EXCLUDE DEFENDANTS FROM PRESENTING LEGAL CONCLUSIONS THAT NO DUTY EXISTS: Deny. The court has not been asked nor does it intend on its own to render any opinion on the issue of duty. Defendants are not

prohibited from presenting their theory of the case. Otherwise, it is improper to ask the court to make that decision as a matter of law.

MOTION IN

LIMINE NO. 4 TO EXCLUDE DEFENDANTS FROM REFERENCING THAT THE INTEGRATION CLAUSE IN THE RELEASE SIGNED BY DECEDENT DAKOTA LINGARD BARS PLAINTIFFS' ORAL CONTRACT ARGUMENTS: There are no Exhibits attached to the motion. Defer.

MOTION IN

LIMINE NO. 5 TO EXCLUDE DEFENDANTS FROM INTRODUCING REPUTATION EVIDENCE AT TRIAL: It depends. Its reputation is generally not relevant to any issues in the case. There is nothing that prevents defendant from showing its method of operation but that has nothing to do with its own reputation.

MOTION IN

LIMINE NO. 6 TO EXCLUDE CRI-HELP POLICIES NOT DISCLOSED IN DISCOVERY: Moot. Defendant Cri-Help has settled. Otherwise, see the motion in limine about facts not disclosed in discovery.

MOTION IN

LIMINE NO. 7 TO EXCLUDE DEFENDANTS FROM PRESENTING CHARACTER EVIDENCE ABOUT DECEDENT DAKOTA LINGARD AT TRIAL: Grant as to evidence that decedent was on probation or had lost parental rights. Otherwise, make the objection at the time of the question. Of course, if plaintiff opens the door based on elicited testimony, the court may change its mind.

MOTION IN

LIMINE NO. 8 TO EXCLUDE DEFENDANTS FROM PRESENTING EVIDENCE OF AUDY HARMAN'S FINANCIAL CONDITION AT TRIAL: Grant. There shall be no mention of the wealth or poverty of any person or entity, and specifically as to defendant Harman, any evidence concerning financial hardship, potential sale of Sober Souls, or payment of legal fees. Until the jury makes a finding by clear and convincing evidence that will allow a jury to consider punitive damages, defendant Harman's or Sober Soul's financial condition is irrelevant. This applies as well to decedent's wealth or poverty, or that of his family.

MOTION IN

LIMINE NO. 9: REQUEST FOR MINI-OPENING, PRE-VOIR DIRE INSTRUCTIONS, AND ADEQUATE VOIR DIRE TIME: The court does not believe this is a proper motion in limine but can advise the parties that it always allows mini-openings (3-4

minutes) and it never sets time limits on voir dire except to ask counsel to be reasonable. The court will not pre-instruct prior to voir dire. There should not be any discussion of the law in voir dire. The court is also reluctant to allow any questions asking a prospective juror what their understanding of the law is as it invites erroneous responses which cannot be corrected as counsel are not allowed to tell the jury what the law is. Finally, if a juror asks an attorney a question, the court will decide whether it or counsel may respond to the question.

MOTION IN

LIMINE NO. 10: TO EXCLUDE IMPROPER ARGUMENT ATTACKING COUNSEL OR INVOKING PREJUDICE UNRELATED TO EVIDENCE: The court grants the motion to not allow disparagement or personal attacks on the attorneys, including calling them liars. This applies to everyone.

MOTION IN

LIMINE NO. 11 TO PRECLUDE READING OR USING CASE-SPECIFIC HEARSAY FROM MEDICAL RECORDS AS INDEPENDENT PROOF: Grant.

DEFENDANTS'

MOTIONS IN LIMINE

MOTION IN

LIMINE NO. 1 FOR AN ORDER TO PRECLUDE PLAINTIFFS' COUNSEL, PLAINTIFFS, AND/OR ANY OF PLAINTIFFS' WITNESSES FROM MAKING ANY "GOLDEN RULE," OR IN ITS MORE MODERN INCARNATION, "REPTILE THEORY" ARGUMENT: Grant. There shall be no questions or argument suggesting that this case refers to "community" standards or may have a direct effect on the community or the rights of jurors. Nor shall there be any questions or argument that the jurors are to imagine themselves in the shoes of the plaintiff. Please review below: Allen v. Patel 117 Cal.App.5th 432, 2025 WL 3718739 (4th Dist. Ct. App. 2025). This is controlling law.

"1. Golden
Rule Violation

Before the

trial, the trial court heard defendant's MIL 1, in which defendant requested that the trial court exclude evidence and arguments based on the golden rule and reptile theory, The trial court initially deferred ruling on MIL 1, as to

the golden rule, until it became an issue during the trial. Later in the trial, the trial court granted defendant's objection to Blue's closing argument on the ground it violated the golden rule.

During

closing argument, when asking the jury to compensate Allen for her injuries, Blue requested the jury to imagine the following scenario: "There is a big limousine that drives up into the parking lot, and it parks right next to the U-Haul. And out of that limousine comes a person really well dressed, perfect suit, perfect socks, perfect shoes. Six other people and they all have black briefcases, shiny black briefcases. They walk down the corridor to Room 163, and they knock on the door and get past Mr. Mejia and Mr. Patel. And they all walk in and open the door. . . . [¶] First guy, the main guy comes, and he has this big shiny briefcase. And he sees Ms. Allen, and he opens [h]is briefcase. There is a crisp \$100 bill, all of the briefcases, \$6,000,000. And he shows it. . . . He says Ms. Allen, this is for you. You can have every one of these. You can do whatever you want with these. It's yours. Take it for the rest of your life." Defendant objected at this point, stating "[g]olden rule." The trial court overruled the objection.

Blue

continued: "So the man closes the briefcase and puts it down and says to Ms. Allen 'You can have that, but I'm going to want something. I'm going to take every single thing that matters to you. I'm going to take your husband and all that love that you have enjoyed. I'm going to take your dignity. I'm going to take your calm. I'm going to take everything that matters to you. You will never have that again ever. And I'm going to leave this briefcase outside the door because you don't have a choice. [¶] Now, in the beginning of this case I had mentioned compensation is an equal fair value." Defendant again objected, stating "[g]olden rule." The trial court sustained the objection and instructed the jury not to consider the discussion regarding "the briefcase and the money inside."

The trial

court concluded during the MNT hearing and in its statement of decision, that Blue violated the court's order not to violate the golden rule, when Blue made the above analogy. In effect, Blue asked the jury if it would accept \$6,000,000 in exchange for being put in Allen's position. A "golden rule" argument is one where "counsel asks the jurors to place themselves in the plaintiff's shoes and to award such damages as they would 'charge' to undergo equivalent pain and

suffering.” (Beagle v. Vasold (1966) 65 Cal.2d 166, 182, fn. 11; see Cassim, supra, 33 Cal.4th at p. 797.)

Making a

golden rule argument is improper because “[t]he jury must impartially determine pain and suffering damages based upon evidence specific to the plaintiff, as opposed to statistical data concerning the public at large. The only person whose pain and suffering is relevant in calculating a general damage award is the plaintiff. How others would feel if placed in the plaintiff’s position is irrelevant.[] It is improper, for example, for an attorney to ask jurors how much ‘they would “charge” to undergo equivalent pain and suffering.’ [Citation.]” (Loth v. Truck-A-Way Corp. (1998) 60 Cal.App.4th 757, 764-765, fn. omitted.) A golden rule argument, “in effect asks each juror to become a personal partisan advocate for the injured party, rather than an unbiased and unprejudiced weigher of the evidence. Finally, it may tend to induce each juror to consider a higher figure than he otherwise might to avoid being considered self-abasing.” (Id. at p. 765, quoting Neumann v. Bishop (1976) 59 Cal.App.3d 451, 484- 485.)

Here, Blue

violated the golden rule during closing argument by suggesting that when considering the amount of fair value compensation Allen should receive for her losses, the jurors should imagine what it would be like to be forced to accept the loss of “every single thing that matters” to them in exchange for a briefcase full of money.

Reptile

Theory

Blue also

committed misconduct by violating the reptile theory doctrine during closing argument. The court made it clear during the hearing on MIL 1 that reptile theory arguments were improper. Reptile theory arguments attempt to appeal to a jury’s emotions by arguing a defendant’s conduct threatens the community’s safety. (Regalado v. Callaghan (2016) 3 Cal.App.5th 582, 599.) A violation of the reptile theory occurs when counsel asks jurors to base their decisions on concerns about their own safety and the safety of the community rather than the applicable standard of care. (Id. at pp. 598- 30 599 [closing argument remarks telling jury its function was to keep the community safe were improper]; Cassim, supra, 33 Cal.4th at p. 796 [arguments appealing to the self-interests

of jurors are improper because they tend to undermine juror impartiality.])

Blue began

his opening statement by stating, "I'm scared. I couldn't sleep last night because I'm scared. It's an enormous obligation to represent somebody who cannot represent themselves. . . . I'm shaking. My knees are shaking. . . . It's a privilege of a lifetime . . . when you believe in somebody. My fear is that I have not done a good enough job to represent that person the way that person deserved to be represented that I have failed. And at some point, I'm going to hand this case . . . to you for you to take this case for me. And that scares me to death."

Blue then

told the jury it had "an opportunity to make a difference. We go through life, try to set an example, try and do the right thing. Maybe somebody will see. Maybe our children will see. Maybe our students will see. But seldom do we have an opportunity to defend our community, to champion our community, to stand as the last bastion for what we will tolerate for our community. Will we tolerate men coming into a room with a vulnerable woman, the most vulnerable of us and put their hands on her? Will we tolerate that? That decision is going to be your decision in just a few moments."

Blue noted

that "we are stuck with a money justice system. . . . Mr. Patel will not serve a day in jail aside from any potential charges that may be filed against him in criminal court, but that's not for us. [¶] Here in this civil justice system, Mr. Patel will not serve a day in jail. Judge Sachs will not call the deputies to have him escorted. The deputies won't take Mr. Patel out to the public square and have him flogged. Mr. Patel will not be escorted to the front of the courthouse to wear a sign that says, 'Shame on me.' None of that is going to happen. It's just money, dirty money." Blue added that "all we have to ask for is money."

Blue

further told the jury: "We have the power to decide what is right. We have the power to decide what is just. We have the power to claim to the world that in this community a person cannot put their hands on another person. We have that power, and we can proclaim it. . . . [¶] So ultimately the power is yours. And that power extends into the future to protect the innocent of your community. It's up to you. Do you want to protect the most vulnerable, the innocent? Do

you want to protect the members of your community from someone just putting their hands on you?" Blue added that Allen's attempt to stay at the Hotel without paying rent "doesn't give a person a right to put their hands on her. . . It's up to you. It's up to you to exercise that power. It's up to you. And the opportunities are so few, so few to go and apply that power to make a change to make a real change to protect your community. And in so doing I believe that in so doing I believe fulfill your destiny. It's why we are here. These opportunities are so few. We ought not to waste them. Fate chooses a precious few."

Blue also told the jury that the court reporter was recording everything "because it's a historical record. It's a record to show what happened here on this day in this courtroom in this community. Your grandchildren's grandchildren will be able to come here and see what happened on this day. You can see the defenders of a community tell a person you cannot put his hands on a member of the community . . ." We conclude the trial court reasonably found during the MNT hearing and in its statement of decision that Blue violated the reptile theory by telling the jury it had "the power to claim to the world that in this community a person cannot put hands on another person." Blue's closing arguments improperly urged the jury to enter a verdict against defendant as a way of protecting the community from harm, in violation of the reptile theory. "

MOTION IN

LIMINE NO. 2 FOR AN ORDER TO PRECLUDE THE USE OF PORTIONS OF VIDEO DEPOSITIONS IN OPENING STATEMENTS: Grant. The court does not allow any display of documents, videos, or power points without prior permission of the court. If you intend to use a power point, the parties must disclose them to the other side so that objections can be made and ruled on before the Opening Statement. This court follows LASC Local Rule 3.97: "3.97 USE OF GRAPHIC DEVICES IN OPENING STATEMENTS In opening statements to the jury by counsel, no display to the jury or reference should be made to any chart, graph, map, picture, model, video, or any other graphic device or presentation except (1) when marked as an exhibit and received in evidence, (2) by stipulation of counsel, or (3) with leave of court. With prior approval of the court, counsel may use the chalkboard or paper for illustrative purposes during opening statements."

MOTION IN

LIMINE NO. 3 FOR AN ORDER TO PRECLUDE PLAINTIFF'S EXPERTS FROM TESTIFYING AT

TRIAL AS TO FACTS OR OPINIONS OTHER THAN THOSE TESTIFIED TO AT THEIR DEPOSITIONS: This is a boilerplate motion. Denied in a vacuum. It depends on the questions that were asked. It would be helpful for the court to have depositions with word indices attached.

MOTION IN

LIMINE NO. 4 FOR AN ORDER PRECLUDING WITNESSES NOT DISCLOSED DURING DISCOVERY FROM TESTIFYING AT TRIAL: This is a boilerplate motion and should not have been filed unless there is something specific to point to. As defendants have the witness list of plaintiffs, they should know if there is a witness they wish to exclude. It depends. If an answer is shown to be false, the court may consider it. But if the response was inadequate and no motion was filed, it will be denied. You must show the court the discovery request, any response and supplemental response. The court will not rule in a vacuum.

MOTION IN

LIMINE NO. 5 FOR AN ORDER PRECLUDING PLAINTIFF FROM RAISING ISSUES OR EVIDENCE OUTSIDE THE SCOPE OF THE PLEADINGS REGARDING NEGLIGENT HIRING/TRAINING/SUPERVISION: Denied in a vacuum. Please explain what you believe the plaintiff will be presenting that is improper.

MOTION IN

LIMINE NO. 6 FOR AN ORDER TO PRECLUDE PLAINTIFF FROM INTRODUCING ANY WITNESSES, EVIDENCE OR CONTENTIONS NOT DISCLOSED IN DISCOVERY: This is a boilerplate motion and should not have been filed unless there is something specific to point to. As defendants have the exhibit and witness lists of plaintiffs, they should know if there is a witness, or exhibit they wish to exclude. It depends. If an answer is shown to be false, the court may consider it. But if the response was inadequate and no motion was filed, it will be denied. You must show the court the discovery request, any response and supplemental response. The court will not rule in a vacuum.

MOTION IN

LIMINE NO. 7 FOR AN ORDER TO BIFURCATE ISSUES OF LIABILITY AND DAMAGES: Deny. This was done as a motion in limine and not as a noticed motion which is required by CCP section 598. The noticed motion must be made no later than 30 days before trial. See Local Rule LASC Rule 3.57(c): "Bifurcation of Issues Improper. A motion in limine may not be used for the purpose of seeking an order to try an issue before the trial of another issue

or issues. That motion may only be made in compliance with Code of Civil Procedure section 598.”

MOTION IN

LIMINE NO. 8 FOR AN ORDER TO PRECLUDE EVIDENCE THAT IS INCONSISTENT WITH THE CONTRACT: Deny. Plaintiffs are allowed to put on their case. Make your objections at the time of an objectionable question. Local Rule 3.57(b) Summary Adjudication Improper. A motion in limine may not be used for the purpose of seeking summary judgment or the summary adjudication of an issue or issues. Those motions may only be made in compliance with Code of Civil Procedure section 437c and applicable court rules. Otherwise, it is improper to ask the court to make that decision as a matter of law.

MOTION IN

LIMINE NO. 9 FOR AN ORDER TO PRECLUDE ARGUMENT THAT THE RELEASE DOES NOT APPLY TO SUCCESSORS IN INTEREST, HEIRS, AND ASSIGNS; AND TO DETERMINE THAT THE RELEASE APPLIES TO PLAINTIFFS: Deny. Local Rule 3.57(b) Summary Adjudication Improper. A motion in limine may not be used for the purpose of seeking summary judgment or the summary adjudication of an issue or issues. Those motions may only be made in compliance with Code of Civil Procedure section 437c and applicable court rules. Otherwise, it is improper to ask the court to make that decision as a matter of law.

MOTION IN

LIMINE NO. 10 FOR AN ORDER TO PRECLUDE ARGUMENT THAT SOBER SOULS PROVIDED PROFESSIONAL AND/OR MEDICAL SERVICES AND WAS REQUIRED TO BE LICENSED, AND PRECLUDE REFERENCE TO INAPPLICABLE CODE SECTIONS: Deny. Local Rule 3.57(b) Summary Adjudication Improper. A motion in limine may not be used for the purpose of seeking summary judgment or the summary adjudication of an issue or issues. Those motions may only be made in compliance with Code of Civil Procedure section 437c and applicable court rules. Otherwise, it is improper to ask the court to make that decision as a matter of law.

MOTION IN

LIMINE NO. 11 FOR AN ORDER TO PRECLUDE MENTION THAT DAKOTA LINGARD WAS UNDER THE INFLUENCE THE NIGHT PRIOR TO OVERDOSING: It depends. Was there any evidence of this? Must be discussed with the court before mentioning it at trial. Local Rule 3.57(b) Summary Adjudication Improper. A motion in limine may not be used for the purpose of seeking summary judgment or the summary adjudication of an issue or issues. Those motions may only be made in

compliance with Code of Civil Procedure section 437c and applicable court rules.

MOTION IN

LIMINE NO. 12 FOR AN ORDER TO PRECLUDE MENTION THAT DAKOTA LINGARD WAS UNDER THE INFLUENCE AT THE TIME OF SIGNING: It depends. Was there any evidence of this? Must be discussed with the court before mentioning it at trial.

Local Rule 3.57(b) Summary Adjudication Improper. A motion in limine may not be used for the purpose of seeking summary judgment or the summary adjudication of an issue or issues. Those motions may only be made in compliance with Code of Civil Procedure section 437c and applicable court rules.

MOTION IN

LIMINE NO. 13 FOR AN ORDER TO PRECLUDE ARGUMENT THAT DAKOTA LINGARD WAS INCOMPETENT TO SIGN SOBER SOULS' AGREEMENT: It depends. Was there any evidence of this? Must be discussed with the court before mentioning it at trial. Local Rule 3.57(b) Summary Adjudication Improper. A motion in limine may not be used for the purpose of seeking summary judgment or the summary adjudication of an issue or issues. Those motions may only be made in compliance with Code of Civil Procedure section 437c and applicable court rules. Otherwise, it is improper to ask the court to make that decision as a matter of law.

MOTION IN

LIMINE NO. 14 FOR AN ORDER TO PRECLUDE PLAINTIFFS FROM ARGUING THAT THE AGREEMENT IS INVALID BECAUSE DAKOTA LINGARD RATIFIED THE CONTRACT VIA PERFORMANCE: Deny. Local Rule 3.57(b) Summary Adjudication Improper. A motion in limine may not be used for the purpose of seeking summary judgment or the summary adjudication of an issue or issues. Those motions may only be made in compliance with Code of Civil Procedure section 437c and applicable court rules. Otherwise, it is improper to ask the court to make that decision as a matter of law.

MOTION IN

LIMINE NO. 15 FOR AN ORDER TO EXCLUDE THE OPINIONS AND TESTIMONY OF PLAINTIFFS' EXPERT, MICHEL SUCHER, OR IN THE ALTERNATIVE, REQUEST A SECTION 402 HEARING: First, it should be noted that the court overruled all of the objections to Dr. Sucher's declaration from the MSJ. The court does not intend to change its rulings. A 402 hearing is not needed. Deny.

MOTION IN LIMINE NO. 16 FOR AN ORDER TO PRECLUDE ARGUMENT OF FRAUD:

Deny. The court will not grant this motion in a vacuum.

Essentially, as with the other improper MILS by defendants, defendants are seeking orders as a matter of law that plaintiffs cannot prove Fraud. To the contrary, plaintiffs can put on their admissible and relevant evidence and the jury can decide. Local Rule 3.57(b) Summary Adjudication Improper. A motion in limine may not be used for the purpose of seeking summary judgment or the summary adjudication of an issue or issues. Those motions may only be made in compliance with Code of Civil Procedure section 437c and applicable court rules. Otherwise, it is improper to ask the court to make that decision as a matter of law.